

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO BIFURCATE ON COMPLAINT OF TERESA FALCON BY CNRC, LLC, BRIUS MANAGEMENT CO., INC., BRIUS HEALTHCARE, LLC, BRIUS, LLC

Tentative Ruling: No tentative ruling. Hearing is continued to Friday, February 5, 2027 to be heard at time of jury trial as part of motions in limine and other required briefings per local rule 3401 order. This hearing is for punitive damages.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2402536	FALCON VS CNRC, LLC	MOTION TO BIFURCATE ON COMPLAINT OF TERESA FALCON BY CNRC, LLC, BRIUS MANAGEMENT CO., INC., BRIUS HEALTHCARE, LLC, BRIUS, LLC

Tentative Ruling: No tentative ruling. Hearing is continued to Friday, February 5, 2027 to be heard at time of jury trial as part of motions in limine and other required briefings per local rule 3401 order. This hearing is for alter ego liability.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2600517	KASSNER VS EISENHOWER MEDICAL CENTER	MOTION TO COMPEL FURTHER RESPONSES AND DOCUMENTS TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO BY KRISTINE KASSNER

Tentative Ruling: Hearing continued to Thursday, November 19, 2026 at 8:30 a.m., Department PS2.

This is an action for wrongful termination and various wage-and-hour violations, including under California's Private Attorney General Act (Labor Code §§2699 et seq.). Plaintiff Kristine Kassner alleges that she was employed by defendant Eisenhower Medical Center from September of 2015 to September of 2025, primarily as a nurse. Plaintiff alleges, during the relevant time period, that she was misclassified as an exempt employee. She also alleges that she protested preferential treatment given to members of the 24/7 Care program, a program for donors who gave \$300,000 or more in donations to the Hospital, and that the director of the 24/7 Care program, defendant, Connie Head, retaliated against plaintiff by micromanaging her, berating her, demeaning her, and giving her a negative performance evaluation. The situation continued to escalate until plaintiff's eventual termination.

Plaintiff served two sets of requests for production, RFP Set One and RFP Set Two (and other discovery), on April 30, 2026. After two extensions (and plaintiff's refusal to agree to a third), on June 24, 2026 defendant served responses of objections only.

Plaintiff sent a meet-and-confer letter and the parties discussed the dispute over the phone, during which time defendant's counsel represented that substantive responses would be provided. This was repeated in meet-and-confer letters sent by defendant's counsel on July 2, 2026 and July 30, 2026. The next day, plaintiff filed two motions to compel further responses. The instant motion to compel further responses to RFP Set Two was set for Tuesday, September 15; the motion to compel further responses to RFP Set One was set for Thursday, November 19.

On August 28 defendant served verified supplemental responses to both sets of RFPs and, a few days later, oppositions to both motions. Plaintiff filed replies.

Currently, it appears to the court that a number of RFPs have been supplemented and plaintiff accepts the supplemented responses as sufficient: From Set One, RFP #6, 55, 57, and 71 (RFP #6 concerns commendations and awards received by the plaintiff, while the other three generally concern the defendant's organizational structure). From Set Two, RFP 36-41 (RFPs about classification of employees as exempt or not exempt). To all of the RFPs where plaintiff accepts the supplemented response as sufficient, the supplemental response was that no such documents existed.

Another number of RFPs were not supplemented: These include several RFPs seeking documents about the 24/7 Care Program generally (Set One, RFP #8, 10, 11, 24-26, 43, 44, and 54), documents about classification of employees in the 24/7 Care Program (Set One, RFP #38-41), documents about the termination of the employment of other employees (Set One, RFP #33, 34, 50, and 58), documents about "me-too" complaints (Set One, RFP #74 and 75), documents about plaintiff's benefits and insurance (Set One, RFP #77 and 78), documents about the PAGA class (Set Two, RFP #1-8, 16 and 17), documents about the PAGA class overtime, rest break, and other time records (Set Two, RFP #9-14, 19-21, and 29), and documents about releases and claims to aggrieved employees (Set Two, RFP #42-46). Briefly, these RFPs were responded to with objections only on the initial response and no further response was given when defendant provided supplemental responses.

A third group has been supplemented but plaintiff considers the supplemental responses insufficient: handbooks and personnel policies (Set One, RFP #1, 2, 4 and 5), plaintiff's personnel records (Set One, RFP #3, 7, 9, 12-15, and 76-77), ESI regarding various emails (Set One, RFP #16-23), investigations of plaintiff's own complaints (Set One, RFP #27-32, 35-37, 42, 45-49, 51-53, 56, and 59-62), job descriptions and org charts (Set One, RFP #63-70, 72, 73), job descriptions of aggrieved employees (Set Two, RFP #15), policies regarding breaks, overtime, and so forth (Set Two, RFP #18, 22-28, and 30), and plaintiff's own time records (Set Two RFP #31-35). To these responses defendant promises to provide at least some of the documents requested, either by identifying specific documents to be produced in response to the request, promising to provide documents subject to the objections already made, promising to provide responsive, nonprivileged documents, or by providing additional definitions before promising to provide responses. For the ESI RFPs (Set One, RFP #16-23), defendant offers to meet and confer regarding reasonable ESI terms.

Of the RFPs which have been supplemented and plaintiff contends the responses are insufficient, plaintiff agrees that the RFPs regarding electronically stored information (Set One, RFPs 16-23) require a further meet and confer. A party is required to meet and confer over insufficient responses before bringing a motion to compel further responses (C.C.P. §§2031.310(b)(2), 2016.040), and this applies to supplemental responses, especially when, as here, the supplemental responses are the first substantive responses provided.

Motion to Compel Further Response(s)

C.C.P. §2031.210 allows for three responses to an RFP: a statement that the party will comply, a representation of an inability to comply, or an objection. (C.C.P. §2031.210(a).).

Here, in her reply, plaintiff argues: “Nowhere does Defendant state that compliance will be in whole or in part..., and nowhere does Defendant state whether any responsive documents—whether outside that narrowed date range or otherwise—are being withheld on the basis of the objections it maintains....”

The fix this requires is narrow. Plaintiff does not ask the Court to decide whether Defendant’s boilerplate objections to these fifteen requests are ultimately valid. Plaintiff asks only that Defendant say, for each one, whether it is producing everything responsive or withholding something on the basis of an objection it still maintains—the disclosure Code of Civil Procedure sections 2031.220 and 2031.240, subdivision (b), already require of any response, regardless of the objection’s merit. Moreover, the court notes the instant motions were filed even though plaintiff’s counsel had received a written representation the day before the motion was filed that defendant would be supplementing many of its responses (Rushovich declaration, ¶12; Exhibit “I”) and the deadline for filing the motion to compel further responses was still a week away.

Since supplemental responses have been received, the parties are ordered to meet and confer over those responses before the court addresses the merits. The instant hearing is continued to November 19, 2026 at 8:30 a.m. to be heard with the other motion to compel further documents. Additionally, the parties are further ordered to submit supplemental briefing as to both motions describing their efforts to meet and confer over the supplemental responses and to provide new separate statements identifying each RFP still being disputed and the arguments as to why the supplemental response is or is not sufficient. The supplemental briefings, one by each side per motion, are due 15 days prior to the November 19, 2026 date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2603134	RIVCO MECHANICAL SERVICES, INC. VS CLARK	MOTION TO STRIKE COMPLAINT ON CROSS-COMPLAINT OF MATT CLARK... BY RIVCO MECHANICAL SERVICES, INC.

Tentative Ruling: Moot.

Cross Defendant Rivco moves to strike 21 portions from the XC, including the § 16600.1 voidness allegation, the attempted-enforcement and harm allegations, the § 16600.5 damages and fee requests, the wage/expense allegations, the word fraudulent, and the declaratory and injunctive prayer language, arguing they are irrelevant, improper, unsupported, overbroad, or not drawn in conformity with California law and rest on the false premise that Rivco’s protected-information case is really enforcement of paragraph 4 as a bare non-compete.

Motion to Strike

Under Code of Civil Procedure § 436, the court may strike from any pleading any irrelevant, false, or improper matter inserted therein, or any part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. The court reads the challenged pleading as a whole, accepting well-pleaded factual allegations as true and giving the pleading a reasonable interpretation. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) The